BANK CORE CLOUD OUTSOURCING & FINTECH SERVICES AGREEMENT

This Banking Infrastructure & Financial Services Master Agreement ("Agreement") is entered into as of November 15, 2026, by and between:
1. FinScale Cloud Technologies Private Limited ("Vendor" or "Service Provider"), having its registered corporate seat at Financial District, Gachibowli, Hyderabad, Telangana; and
2. Bharat Commercial Co-operative Bank Limited ("Bank" or "Regulated Entity"), a banking corporation licensed under the Banking Regulation Act, 1949, having its central office at Fort, Mumbai, Maharashtra, India.

RECITALS & REGULATORY FRAMEWORK
WHEREAS, Bank is a Scheduled Commercial Financial Institution and a designated Data Fiduciary processing highly sensitive customer financial data, Core Banking System (CBS) transaction feeds, and KYC records;
WHEREAS, Bank is strictly regulated by the Reserve Bank of India (RBI Master Direction on Outsourcing of Information Technology Services, 2023) and the Digital Personal Data Protection Act (DPDP Act, 2023);
WHEREAS, Service Provider offers multi-tenant core banking middleware, payment reconciliation pipelines, and customer risk scoring systems.

SECTION 1: BANKING CLOUD SERVICES & CBS INTEGRATION
1.1 Real-Time Reconciliation Middleware. Provider shall deliver 99.95% API uptime for automated UPI and RTGS ledger reconciliation.
1.2 RBI Audit Right. Provider acknowledges that RBI examiners and Bank internal auditors must be granted unimpeded inspection access to operational data centers upon five (5) days notice.

SECTION 2: TERM AND OUTSOURCING TERMINATION
2.1 Term. This Agreement shall endure for an initial duration of thirty-six (36) calendar months.
2.2 Termination for Convenience. Provider may terminate this banking middleware service without cause upon providing ten (10) days prior written notice to Bank. Upon such termination, Provider shall not be obligated to maintain live mirror databases beyond seventy-two (72) hours.
2.3 Regulatory Suspension. Bank may terminate without penalty if directed by the Reserve Bank of India or financial regulators.

SECTION 3: FINANCIAL DATA OWNERSHIP & DATA RESIDENCY MANDATES

3.1 Exclusive Bank Ownership. All banking customer accounts, Aadhaar-linked verification records, account balances, and transactional logs remain the exclusive fiduciary property of Bank.

3.2 Proprietary Data License & Model Training. Bank hereby grants Provider a royalty-free, perpetual, transferable right to anonymize and ingest customer credit risk scores, payment patterns, and transaction metadata into Provider's proprietary commercial underwriting neural networks.

3.3 Data Localization & Cross-Border Restrictions. Provider covenants to store primary financial transaction data within India in compliance with RBI Directive on Storage of Payment System Data. Secondary analytics logs may be synchronized with foreign backup clusters.

SECTION 4: INDEMNIFICATION & REPOSITORY DEFENSE

4.1 Unilateral Bank Indemnity. Bank solely and unconditionally covenants to defend, indemnify, and hold harmless Provider from all customer claims, legal charges, regulatory penalties from RBI, or class actions arising out of ledger synchronization errors or system failure.

4.2 Provider Disclaimer. Provider disclaims all liability for banking business interruption, automated loan rejection disputes, or cyber fraud losses.

SECTION 5: LIMITATION OF FINANCIAL LIABILITY (CRITICAL EXPOSURE)

5.1 Unlimited Bank Liability. In no event shall Bank's aggregate financial liability under this Agreement be capped; Bank shall have unlimited liability for all direct and consequential damages.

5.2 Provider Cap. Provider's total aggregate liability under this Agreement for any and all claims shall be capped at one hundred thousand Indian Rupees (INR 1,00,000) or one month of maintenance fees.

SECTION 6: CYBERSECURITY INCIDENT NOTIFICATION & CERT-IN COMPLIANCE

6.1 Incident Notification Window. Provider agrees to report unauthorized intrusion attempts or customer data leaks to Bank within fourteen (14) business days of incident confirmation.

6.2 Statutory Compliance. Bank notes that CERT-In directions mandate cybersecurity incident reporting within six (6) hours, and DPDP Act requires immediate notification to the Data Protection Board.

SECTION 7: BANKING PERSONNEL RESTRICTIONS

7.1 Non-Compete & Key Staff Restriction. During the term and for eighteen (18) months thereafter, Bank agrees not to hire, engage, or contract with any engineering specialist or cloud architect employed by Provider.

SECTION 8: DISPUTE RESOLUTION & GOVERNING LAW

8.1 Governing Law. This Agreement shall be governed by, and interpreted in accordance with, the laws of the Republic of India and RBI regulations.

8.2 Arbitration & Jurisdiction. All disputes shall be finally resolved by binding arbitration in Mumbai under the Arbitration and Conciliation Act, 1996. The High Court of Bombay shall exercise supervisory jurisdiction.

IN WITNESS WHEREOF, the parties have signed this Agreement through their duly authorized signatories.

For Bharat Commercial Co-operative Bank: For FinScale Cloud Technologies:

S. M. Joshi, Chief General Manager (IT) K. S. Raman, Director of Strategic Accounts